



MEMORANDUM OF UNDERSTANDING (MoU)

This Memorandum of Understanding is made on 6th August 2020, at Lucknow, Uttar Pradesh.

BETWEEN

Governor of Uttar Pradesh through Shri Navneet Sehgal, Additional Chief Secretary, MSME & Export Promotion Department, Government of Uttar Pradesh (hereinafter referred to as "GoUP") of one part;

AND

Dr. A.P.J. Abdul Kalam Technical University (AKTU) (formerly UPTU), established by the Government of Uttar Pradesh, vide Act Amendment No. 1156(2) LXXIX-V-1-15-1(Ka), 24-2015 dated Sept 9, 2015 Uttar Pradesh Adhiniyam Sankhya 23 of 2000, having its office at Sec-11, Jankipuram, Vistar Yojna, Lucknow, 226031 (hereinafter referred to as "APJAKTU") of second part.

GoUP and AKTU are herein after collectively referred to as "Parties" and individually as "Party"

WHEREAS ODOP (One District One Product) Cell, a programme implementation cell set up by Directorate of Industries and Enterprise Promotion, Government of Uttar Pradesh, to implement One District One Product programme of the State Government, having its principal office at Niryat Bhawan, First Floor, 8 Cantt Road, Qaiserbagh, Lucknow – 226001, Uttar Pradesh (hereinafter referred to as "ODOP Cell")

ANDWHEREAS through this MoU, ODOP Cell and AKTU would like to reach out to maximum ODOP artisans and units, through various means, to address technical, managerial and capacity building requirements for their businesses.

Very Kumar Patil

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NOW, THEREFORE, THIS MoU WITNESSES as below:

I. ROLES AND RESPONSIBILITIES:

A) AKTU

1. AKTU shall map engineering colleges with ODOP products in those districts, in which it has presence of colleges affiliated to AKTU.
2. The mapped engineering college shall have internship of their students in ODOP districts in fields of technical design improvements, efficacy enhancement models for different ODOP products. The internship will be arranged in the local industries or problem statements provided by concerned DIEPC office in consultation with the local industry representatives. During the internship, ODOP Cell shall advise the respective industry for the award of stipend to the students as applicable.
3. AKTU shall also initiate internship of their management students along with engineering students to improve marketing linkage, branding, industry eco-system of ODOP products.
4. A yearly hackathon shall be organized, which will be open to all colleges affiliated with AKTU. The primary purpose of the hackathon shall be to solve specific issues related to ODOP products.
5. The students doing B.Tech/M.Tech/MBA need to complete a project as part of their curriculum. AKTU shall endeavour to suggest/provide ODOP products-based projects to these students.
6. A coordinator from each mapped college shall have a regular meeting with respective GM-DIEPC to understand the local industry issue in relation to ODOP products.
7. AKTU will forward the proposals submitted by its affiliated colleges for creation of 'Centre of Excellence' for certain ODOP products to ODOP Cell. ODOP Cell will evaluate these proposals for their feasibility as per provisions of CFC Scheme under ODOP Programme.

B) ODOP Cell

1. ODOP Cell shall provide infrastructure (DIEPC offices across districts can be utilised for the purpose) to carry out trainings/ orientation workshops/ meetings/ events, related to ODOP, to AKTU and its colleges.
2. ODOP Cell shall share the district-wise ODOP product details and DSR reports to AKTU for college mapping.

Very Kumar Patra

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3. ODOP cell shall submit ODOP industry-specific issues for each ODOP product to AKTU for conducting hackathon and for advising problem statements for internship of students.
4. ODOP Cell will help in connecting the colleges under AKTU with industry present in Uttar Pradesh through their DIEPC offices for research and/or internship of students.
5. AKTU will map the colleges with ODOP products and detailed will be shared with ODOP Cell. ODOP Cell will share the DSR reports for respective ODOP Products with mapped colleges for their reference.

II. PROJECT TIMELINE

This MoU will commence from 6th August 2020 and will continue till 3 years until any party wants to terminate this MOU by giving notice to other Party as per provisions of Article V of this MOU.

III. OPERATIONS AND CO-ORDINATIONS

1. ODOP Cell and AKTU shall have periodic meetings to review progress of the MoU implementation.
2. ODOP Cell and AKTU shall mutually acknowledge the contribution of each other, wherever possible, on their website and media platforms including print, TV and digital media.
3. Any amendment in this MoU will be made in writing by mutual consent of both the parties.

IV. FORCE MAJEURE

1. For the purpose of this MoU 'force Majeure' means an event which is beyond the reasonable control of a Party, either ODOP Cell or AKTU and which makes a party's performance regarding its obligations hereunder impossible or so impracticable as reasonably to be considered impossible in the circumstances and include, but is not limited to war, riots, civil disorder, earthquakes, fire, explosions, storm, flood, and other adverse weather conditions, strikes, lock-outs, or other similar actions, political uncertainties, change in priorities in the National and State missions, which is not within the power of the Party invoking "force majeure" to prevent any other action by the other Party.
2. If any Party finds itself incapable to perform its duty due to Force Majeure, it will give notice to other Party that Force Majeure event has arisen.
3. The failure of any Party, either the ODOP Cell or AKTU to fulfil any of its obligations is hereunder shall not be considered to be the breach of or default under this MoU in so far as such inability arises from an event of Force Majeure provided that the Party

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affected by such event should take all reasonable precautions and due care for reasonably carrying out the terms and condition of this MoU.

4. In the event of a Force Majeure, ODOP Cell and AKTU shall consult with each other with a view to agreeing on appropriate measures to be taken under the circumstances.

V. TERMINATION

This MoU can be terminated by either side with a written notice of 60 days, showing adequate reason.

VI. DISPUTES AND ARBITRATION

Any dispute between ODOP Cell and AKTU on any matter that has relevance to the smooth and effective implementation of the MoU shall be settled through mutual discussion.

IN WITNESS WHEREOF the Parties hereto have signed this MoU on the day and year first above written.

For and on behalf of Governor of
Uttar Pradesh

For and on behalf of AKTU

(Navneet Sehgal)
Additional Chief Secretary,
Department of MSME & Export Promotion,
Government of Uttar Pradesh

(Prof Vinay Kumar Pathak)
Vice Chancellor,
APJ Abdul Kalam Technical University,
Uttar Pradesh

Witness 1
Name:
Signature:

Witness 2
Name: Dr. Ayush Srivastava (Assistant Registrar)
Signature: